



Bill Number: S.B. 1573

Rogers Floor Amendment

Reference to: printed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Specifies that a court is prohibited from relying on any religious sectarian law as controlling or persuasive authority.
2. Removes language stating that a decision or ratification of a private agreement by a judge who relies on sectarian law is void, constitutes appealable error and is grounds for impeachment.
3. Modifies the definition of *religious sectarian law* by removing the specific inclusion of Sharia law, Canon law, Halacha and Karma.
4. Modifies the legislative findings clause.
5. Makes technical and conforming changes.

ROGERS FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1573
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Heading change

3 A. The chapter heading of title 12, chapter 22, Arizona Revised
4 Statutes, is changed from "APPLICATION OF FOREIGN LAWS" to "APPLICATION OF
5 FOREIGN LAWS AND RELIGIOUS SECTARIAN LAWS".

6 B. The article heading of title 12, chapter 22, article 1, Arizona
7 Revised Statutes, is changed from "GENERAL PROVISIONS" to "FOREIGN LAWS".

8 Sec. 2. Section 12-3101, Arizona Revised Statutes, is amended to
9 read:

10 12-3101. Definition of foreign law

11 In this ~~chapter~~ ARTICLE, unless the context otherwise requires,
12 "foreign law" means any law, rule or legal code or system other than the
13 constitution, laws and ratified treaties of the United States and the
14 territories of the United States, ~~or~~ or the constitution and laws of this
15 state.

16 Sec. 3. Section 12-3102, Arizona Revised Statutes, is amended to
17 read:

18 12-3102. Application

19 A. This ~~chapter~~ ARTICLE applies only to actual violations of the
20 constitutional rights of a person or actual conflict with the laws of this
21 state caused by the application of the foreign law.

22 B. This ~~chapter~~ ARTICLE does not apply to a corporation,
23 partnership or other form of business association.

1 Sec. 4. Title 12, chapter 22, Arizona Revised Statutes, is amended
2 by adding article 2, to read:

3 ARTICLE 2. RELIGIOUS SECTARIAN LAWS

4 12-3104. Prohibited judicial determinations based on
5 religious sectarian law; applicability; definition

6 A. A COURT SHALL NOT ~~[USE, IMPLEMENT, REFER TO OR INCORPORATE A~~
7 ~~TENET OF]~~ ~~[RELY ON]~~ ANY ~~[BODY OF]~~ RELIGIOUS SECTARIAN LAW ~~[INTO ANY~~
8 ~~DECISION, FINDING OR OPINION]~~ AS CONTROLLING OR ~~[INFLUENTIAL]~~
9 ~~[PERSUASIVE]~~ AUTHORITY.

10 ~~[B. ANY DECISION OR RATIFICATION OF A PRIVATE AGREEMENT THAT IS~~
11 ~~DETERMINED, ON THE MERITS, BY A JUDGE IN THIS STATE WHO RELIES ON ANY BODY~~
12 ~~OF RELIGIOUS SECTARIAN LAW IS VOID, IS APPEALABLE ERROR AND IS GROUNDS FOR~~
13 ~~IMPEACHMENT AND REMOVAL FROM OFFICE.]~~

14 ~~[C.]~~ [D.] THIS SECTION APPLIES TO A FEDERAL COURT SITTING IN
15 DIVERSITY JURISDICTION.

16 ~~[D.]~~ [E.] THIS SECTION DOES NOT APPLY TO:

17 1. A STATUTE OR ANY CASE LAW DEVELOPED IN THE UNITED STATES AND ITS
18 TERRITORIES THAT IS BASED ON ANGLO-AMERICAN LEGAL TRADITION AND PRINCIPLES
19 ON WHICH THE UNITED STATES WAS FOUND.

20 2. A STATUTE OR ANY CASE LAW OR LEGAL PRINCIPLE THAT WAS INHERITED
21 FROM GREAT BRITAIN BEFORE THE EFFECTIVE DATE OF THIS ARTICLE.

22 3. THE RECOGNITION OF A TRADITIONAL MARRIAGE BETWEEN A MAN AND A
23 WOMAN AS OFFICIATED BY THE CLERGY OR A SECULAR OFFICIAL OF THE MATRIMONIAL
24 COUPLE'S CHOICE.

25 ~~[E.]~~ [F.] FOR THE PURPOSES OF THIS SECTION, "RELIGIOUS SECTARIAN
26 LAW"[:

27 1.] MEANS ANY STATUTE, TENET OR BODY OF LAW EVOLVING WITHIN AND
28 BINDING A SPECIFIC RELIGIOUS SECT OR TRIBE. ~~[RELIGIOUS SECTARIAN LAW~~
29 ~~INCLUDES SHARIA LAW, CANON LAW, HALACHA AND KARMA BUT]~~

30 [2.] DOES NOT INCLUDE ANY LAW OF THE UNITED STATES OR THE
31 INDIVIDUAL STATES BASED ON ANGLO-AMERICAN LEGAL TRADITION AND PRINCIPLES
32 ON WHICH THE UNITED STATES WAS FOUND.

33 Sec. 5. Legislative findings

34 The legislature finds that:

35 1. The tenth amendment to the United States Constitution guarantees
36 and reserves to the states or their people all powers not specifically
37 granted to the federal government elsewhere in the constitution as they
38 were publicly understood at the time the amendment was ratified on
39 December 15, 1791, subject only to modification by duly ratified
40 subsequent amendments to the United States Constitution. The guaranty of
41 those powers is a matter of compact between the state and people of
42 Arizona and the United States as of the time Arizona was admitted to
43 statehood on February 14, 1912.

44 2. As a matter of compact between the state and people of Arizona
45 and the United States as of the time Arizona was admitted to statehood on
46 February 14, 1912, the tenth amendment to the United States Constitution
47 guarantees to the state and people of Arizona that other than the

1 enumerated powers expressly granted to the United States under article I,
2 section 8 of the United States Constitution, Congress and the federal
3 government will not exercise any purported control over or commandeer the
4 courts of the state of Arizona.

5 3. At the time the United States Constitution was ratified on June
6 21, 1788, the sole and sovereign power to regulate the state courts rested
7 in the state legislature and has always been a compelling state concern
8 and central to state sovereignty. Accordingly, the foregoing public
9 meaning and understanding of article I, section 8, the establishment
10 clause of the first amendment and the tenth amendment of the United States
11 Constitution are matters of compact between the state and people of
12 Arizona and the United States as of the time Arizona was admitted to
13 statehood on February 14, 1912.

14 4. At the time the United States Constitution was ratified on June
15 21, 1788, the commerce clause was not meant or understood to authorize
16 Congress or the federal judiciary to regulate the state courts in the
17 matter of state substantive law or state judicial procedure. The meaning
18 and understanding of article I, section 8, the establishment clause of the
19 first amendment and the tenth amendment of the United States Constitution,
20 as they pertain to the validity of religious sectarian law as being
21 controlling or influential precedent, have never been modified by any duly
22 ratified amendment to the United States Constitution. Accordingly, the
23 foregoing public meaning and understanding of article I, section 8 and the
24 tenth amendment of the United States Constitution are matters of compact
25 between the state and people of Arizona and the United States as of the
26 time Arizona was admitted to statehood on February 14, 1912.

27 5. At the time the United States Constitution was ratified on June
28 21, 1788, the commerce clause was not meant or understood to authorize
29 Congress or the federal judiciary to establish religious sectarian statute
30 or case law as controlling or influential precedent. The meaning and
31 understanding of article I, section 8, the establishment clause of the
32 first amendment and the tenth amendment of the United States Constitution,
33 as they pertain to controlling or influential legal authority, have never
34 been modified by any duly ratified amendment to the United States
35 Constitution. Accordingly, the foregoing public meaning and understanding
36 of article I, section 8, the establishment clause of the first amendment
37 and the tenth amendment of the United States Constitution are matters of
38 compact between the state and people of Arizona and the United States as
39 of the time Arizona was admitted to statehood on February 14, 1912.

40 6. The Congress and the federal government are denied the power to
41 establish a sectarian religion by recognizing or ratifying judicial
42 decisions based on religious sectarian law.

43 ~~[7. The Congress has no authority to preempt state regulation of~~
44 ~~state courts.]~~

45 ~~[8.]~~ [7.] Under the tenth amendment of the United States
46 Constitution, the people and state of Arizona retain their exclusive power
47 to regulate the state courts of Arizona subject only to the fourteenth

1 amendment's guarantee that the people and state of Arizona shall exercise
2 such sovereign power in accordance with each citizen's lawful privileges
3 or immunities, and in compliance with the requirements of due process and
4 equal protection of the law.

5 ~~[9.]~~ [8.] The ninth amendment of the United States Constitution
6 secures and reserves to the people of Arizona as against the federal
7 government their natural rights to life, liberty and property as entailed
8 by the traditional Anglo-American conception of ordered liberty and as
9 secured by state law, including their rights as they were understood and
10 secured by the law at the time the amendment was ratified on December 15,
11 1791, as well as their rights as they were understood and secured by the
12 law in the state of Arizona at the time the Arizona Constitution was
13 adopted on December 9, 1910. The guarantee of those rights is a matter of
14 compact between the state and people of Arizona and the United States as
15 of the time Arizona was admitted to statehood on February 14, 1912.

16 Sec. 6. Construction and severability

17 A. Any court that construes this act must adopt a construction of
18 each provision that:

19 1. Confines the power of Congress and the federal judiciary to
20 impose religious sectarian law to the least expansive interpretation
21 permitted under binding precedent.

22 2. Secures the authority of the state of Arizona to exclusively
23 regulate its courts under the tenth amendment of the United States
24 Constitution to the greatest extent permitted under binding precedent.

25 3. Protects the constitutional rights of Arizonans under article I,
26 section 8 of the United States Constitution, as well as the first, ninth
27 and tenth amendments to the United States Constitution to regulate the
28 state's judiciary permitted under binding precedent.

29 B. If a provision of this act or its application to any person or
30 circumstance is held invalid, the invalidity does not affect other
31 provisions or applications of the act that can be given effect without the
32 invalid provision or application, and to this end the provisions of this
33 act are severable.

34 Sec. 7. Short title

35 This act may be cited as the "Arizona Foreign Decisions Act".

36 Enroll and engross to conform

37 Amend title to conform

WENDY ROGERS

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